Mom's Legal Papers in One Place

Where the power of attorney, the will, the trust and the deed are, and who holds them.

The will is at a law office Mom used years ago, the deed might be in the safe deposit box, and the power of attorney is in a kitchen drawer. Probably.

This page doesn't ask you to understand any of it. It asks which papers exist, the date on each, where it is, and who holds it.

WHAT TO COLLECT	WHERE IT IS	ITS DATE	WHO HOLDS IT
Power of attorney for money and property			
Healthcare decision-making documents, such as a healthcare power of attorney or a living will			
Trust, with anything added to it later			
Will			
Deed to her home			
Deeds to any other real property			
Papers showing a gift, transfer or ownership change already made			
Beneficiary forms for accounts or policies, if you have them			
Any paper from a court naming someone to act for her, if one exists			
The financial information your family has already organized			
Name and phone number of the law office that prepared any of these, if known			

What we haven't found, and who will look

Any paper above with an empty line, and any the family has only heard about. Put a name next to each.

FOR EXAMPLE Nobody has seen the trust Dad used to mention. Karen will call the law office that did their wills on Monday.

How to use it

- Write the date printed on each paper. If it has no date, write “undated.”
- Note whether what you're holding is the signed original or a copy.
- If two versions of the same paper turn up, list both with their dates. Don't decide which one counts.
- Don't summarize or explain a document here. Just say what it is and where it is.
- Bring this page and the papers to the attorney meeting.

What this page doesn't do

It doesn't say what any paper means, whether it is valid, or which version counts. Those are questions for an elder law attorney, and the answers depend on the paper itself and on your state. Nothing here is legal, financial or tax advice.

Ready for the next step?

You know which of Mom's papers you have, where each one is, and which haven't turned up. The planning interview uses what you've collected: it asks about your family's situation and gives you a free planning report to bring, along with the papers, to an elder law attorney.

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